Constitutional Theory

Admissible Continuation and the Structure of Persistence

The Shape of the Door Through Which the Future Must Pass

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Abstract

Across physics, biology, cognition, economics, language, and institutions, explanation has traditionally proceeded by identifying entities and describing their interactions. Yet this approach repeatedly encounters the same boundary: entities alone cannot explain why certain transformations preserve identity while others dissolve it; why some futures remain available while others become impossible; or why systems exhibit continuity despite continual change.

This paper proposes **Constitutional Theory**, a general framework for understanding persistence, meaning, intelligence, coordination, and evolution in terms of **admissible continuation**. A constitution is defined not as a legal document, but as any structure that determines which continuations of a system remain lawful continuations of that system.

Constitutional Theory treats admissibility as prior to agency, persistence as prior to identity, and continuation as prior to description. Within this framework, meaning becomes the alteration of future possibility; intelligence becomes the preservation of viable continuation; hierarchy becomes the compression of contradiction; markets become mechanisms for constitutional coordination; and physical persistence becomes a special case of constitutional binding.

The theory does not compete with existing scientific descriptions. Rather, it proposes a deeper explanatory layer concerned not with what systems do, but with what they are permitted to become.

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1. The Problem of Persistence

Every explanatory framework eventually encounters a question it cannot answer using its own primitives.

Physics explains motion but struggles to explain why lawful structure persists.

Biology explains adaptation but struggles to explain why organisms remain identifiable across continual replacement.

Economics explains exchange but struggles to explain why markets maintain coherence.

Cognitive science explains computation but struggles to explain meaning.

Political theory explains institutions but struggles to explain legitimacy.

These difficulties share a common form.

They concern neither behavior nor structure alone.

They concern persistence.

Why does a thing remain itself while changing?

Why do some transformations preserve identity while others destroy it?

Why are some futures available and others refused?

The present work proposes that these questions belong to a common category.

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2. The Constitutional Turn

Constitutional Theory begins with a shift in explanatory focus.

Traditional explanations ask:

> What is a thing?

Constitutional explanations ask:

> What must remain true for this thing to continue as itself?

This shift replaces ontology centered on entities with ontology centered on admissibility.

The primary object of inquiry becomes neither substance nor process.

It becomes continuation.

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3. Fundamental Definitions

3.1 Continuation

A continuation is any transformation connecting one state of a system to another.

Not all continuations are equivalent.

Some preserve the system.

Some alter it.

Some terminate it.

The distinction between these possibilities cannot be derived solely from state descriptions.

It depends upon constitutional constraints.

3.2 Constitution

A constitution is the structure that determines which continuations remain admissible.

A constitution need not be written, explicit, formalized, or conscious.

A constitution may exist within:

- a physical system,
- an organism,
- a language,
- a market,
- an institution,
- a mind,
- a civilization.

The constitution governs lawful transformation.

3.3 Admissibility

A continuation is admissible when it preserves the constitutional conditions required for persistence.

Admissibility is not identical to probability.

Rare events may be admissible.

Common events may be inadmissible.

Admissibility concerns possibility under constitutional constraint.

3.4 Refusal

Refusal occurs when a continuation violates constitutional conditions.

Refusal may appear as:

- physical resistance,

- informational inconsistency,
- institutional collapse,
- cognitive contradiction,
- economic insolvency,
- biological death.

Refusal is the negative expression of constitution.

A constitution is known by what it prevents.

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4. Constitutional Invariants

For Constitutional Theory to remain meaningful across domains, certain invariants must hold.

4.1 Identity Is Not Primitive

Identity emerges from preserved continuation.

It does not precede it.

4.2 Persistence Requires Constraint

Unconstrained possibility cannot generate stable systems.

Persistence requires refusal.

4.3 Meaning Alters Future Space

A distinction possesses meaning only insofar as it changes admissible continuation.

Meaning is therefore constitutional.

4.4 Intelligence Preserves Viable Continuation

Intelligence is not fundamentally computation.

It is the capacity to preserve or enlarge viable future space.

4.5 Coordination Is Constitutional

Coordination emerges whenever multiple agents participate within overlapping admissibility structures.

4.6 Evolution Is Constitutional Self-Modification

Evolution modifies constitutions while preserving enough continuity to remain identifiable.

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5. Constitutional Domains

The framework applies across multiple levels of analysis.

5.1 Constitutional Meaning

Meaning is not reference.

Meaning is constitutional consequence.

A distinction matters when it changes the space of future possibilities.

Language functions by altering admissibility.

Communication is the transfer of constitutional constraint.

5.2 Constitutional Intelligence

Intelligence is the maintenance of viable continuation.

A system demonstrates intelligence when it preserves future possibility under constraint.

Optimization is secondary.

Continuation is primary.

5.3 Constitutional Markets

Markets coordinate distributed agents by transforming local constraints into collective admissibility structures.

Prices are constitutional signals.

Contracts are constitutional commitments.

Debt represents deferred contradiction.

Bankruptcy represents constitutional refusal.

5.4 Constitutional Hierarchy

Hierarchy is not fundamental.

Hierarchy emerges when contradictions exceed the capacity of decentralized resolution.

Coordinators compress contradiction.

The necessity of hierarchy is therefore contingent rather than absolute.

5.5 Constitutional Evolution

Evolution is not merely selection.

Evolution is constitutional adaptation.

Successful evolution preserves continuity while altering admissibility.

Failure occurs when constitutional modification exceeds identity preservation.

5.6 Constitutional Physics

At the physical level, inertia may be interpreted as constitutional resistance to unauthorized transformation.

Persistence of lawful structure becomes a special case of constitutional binding.

Physical law appears not merely as dynamics but as admissibility itself.

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6. Relationship to Complexity

Constitutional Theory differs from descriptive complexity.

Kolmogorov complexity asks:

> What is the shortest description capable of generating a system?

Constitutional Theory asks:

> What constraints determine which generated futures remain admissible?

Generation and continuation are distinct questions.

A universe may possess minimal generative complexity while exhibiting immense constitutional complexity.

The shortest program does not necessarily imply the simplest future.

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7. Relationship to Existing Frameworks

Physics

Physics describes lawful transformation.

Constitutional Theory addresses lawful admissibility.

Information Theory

Information theory measures distinctions.

Constitutional Theory measures the significance of distinctions for continuation.

Systems Theory

Systems theory studies interactions.

Constitutional Theory studies the constraints that make interaction coherent.

Evolutionary Theory

Evolutionary theory explains adaptation.

Constitutional Theory explains the preservation conditions under which adaptation remains possible.

Political Constitutionalism

Political constitutions govern societies.

Constitutional Theory generalizes the concept to any persistence-capable system.

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8. An Explicit Impossibility

The framework implies a fundamental impossibility.

No system may preserve identity across transformations that violate the constitution defining that identity.

Equivalently:

Identity cannot survive the destruction of the conditions that make identity possible.

This impossibility appears trivial when stated abstractly.

Yet much of theoretical confusion arises from attempting to preserve entities while discarding the constraints that constitute them.

Constitutional Theory rejects such continuations as inadmissible.

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9. Scope and Limits

This framework is not a predictive theory.

It supplies no equations of motion.

It introduces no new forces.

It proposes no privileged mechanism.

Its purpose is ontological.

It identifies a common explanatory substrate beneath persistence, meaning, intelligence, coordination, and evolution.

Whether future formalization renders the framework mathematically precise remains an open question.

Conclusion

The deepest question facing explanation is not what exists.

It is what persists.

Across every domain, systems survive by navigating a landscape of permissible transformation.

Constitutions determine that landscape.

Meaning changes it.

Intelligence preserves it.

Evolution modifies it.

Hierarchy compresses its contradictions.

Markets coordinate within it.

Physics projects it into lawful structure.

Constitutional Theory therefore proposes a simple inversion:

The future is not built from things.

Things are built from the continuations that survive.

Persistence precedes identity.

Admissibility precedes agency.

Constitution precedes description.

Appendix A: Constitutional Vocabulary

Term	Definition
Continuation	Transformation between states
Constitution	Structure determining admissible continuation
Admissibility	Constitutional permission
Refusal	Constitutional prohibition
Meaning	Change in future possibility
Intelligence	Preservation of viable continuation
Persistence	Continued constitutional coherence
Evolution	Constitutional self-modification
Hierarchy	Contradiction compression
Coordination	Shared admissibility management

Appendix B: Research Program

The present framework suggests several future directions.

1. Formal definition of admissibility spaces.
2. Mathematical treatment of constitutional invariants.
3. Quantification of constitutional complexity.
4. Constitutional models of intelligence.
5. Constitutional economics.
6. Constitutional interpretations of physical law.
7. Constitutional approaches to artificial agency.
8. Constitutional models of civilizational persistence.

Appendix C: Foundational Question

A useful diagnostic question for any system:

> What transformations may occur while this remains itself?

The answer identifies its constitution.

Corpus-Wide Reference Positioning

This paper argues that across physics, biology, cognition, economics, language, and institutions, explanation has traditionally proceeded by identifying entities and describing their interactions. Its nearest external comparison fields are governance, semantic, storage. The sources in [E1], [E2], [E3], [E4], [E5], [E6], [E7] are cited as predecessor literature, adjacent standards, or counterpressure - not as evidence that they caused the Ableman framework or that they validate its novel claims. The comparison isolates where established work already supplies provenance, formal assurance, institutional constraint, empirical method, or engineering practice, and where this paper adds a distinct claim about admissibility, authority, semantic custody, or governed realization.

Within the Ableman corpus, the highest-priority current cross-links are [A1], [A2], [A3], [A4], [A5], [A6], [A7]. These are links among separately custodied works, not silent identity mergers. Their role is to expose mutual dependencies, terminology collisions, and places where a reader should traverse the corpus before treating this paper as self-sufficient.

Reference-pass counterevidence and limit search

The pass applied the following pressure tests: A written constitution can legitimate domination as easily as constrain it unless amendment, participation, enforcement, and appeal remain effective in practice. Formal vocabularies and graph links make commitments explicit but cannot by themselves establish correct identity, shared interpretation, or lossless translation between contexts. Fixity and preservation can keep bytes stable while representation dependencies, executability, interpretation, and institutional custody decay. These limits are not generic disclaimers: they identify the assumptions that a later empirical, formal, or implementation review must try to break.

Reference-pass influence and novelty boundary

No newly added external source is asserted to be a documented authorial influence unless the predecessor source already said so. `Predecessor` means earlier relevant work;

`adjacent` means a useful comparison; `standard` means an interoperability or assurance baseline; and `counterevidence` marks work that narrows or pressures a claim. Novelty therefore remains a reviewable, claim-level question rather than an inference from a low similarity score or an absent citation.

References

External scholarship, standards, and prior art

[**E1**] Elinor Ostrom. *Governing the Commons: The Evolution of Institutions for Collective Action*. Cambridge University Press, 1990. DOI: 10.1017/CBO9780511807763. https://doi.org/10.1017/CBO9780511807763 **Relationship:** Predecessor institutional account of rule-governed collective action and polycentric governance.

[**E2**] Wil Waluchow and Dimitrios Kyritsis. "Constitutionalism." *Stanford Encyclopedia of Philosophy*, substantive revision 2023. https://plato.stanford.edu/entries/constitutionalism/ **Relationship:** Adjacent legal-philosophical account of limited authority; included to expose differences between political and computational constitutionalism.

[**E3**] Lawrence Lessig. *Code: Version 2.0*. Basic Books, 2006. https://codev2.cc/ **Relationship:** Predecessor argument that software architecture regulates behavior; the paper's contribution may be to make such regulation inspectable and revisable.

[**E4**] OECD. *Recommendation of the Council on Artificial Intelligence*. OECD/LEGAL/0449, adopted 2019 and updated 2024. legalinstruments.oecd.org source **Relationship:** Adjacent policy standard for accountability, traceability, transparency, safety, and human-centered values.

[**E5**] Richard Cyganiak, David Wood, and Markus Lanthaler, eds. *RDF 1.1 Concepts and Abstract Syntax*. W3C Recommendation, 25 February 2014. https://www.w3.org/TR/rdf11-concepts/ **Relationship:** Adjacent graph data model and identity baseline.

[**E6**] Alistair Miles and Sean Bechhofer, eds. *SKOS Simple Knowledge Organization System Reference*. W3C Recommendation, 18 August 2009. https://www.w3.org/TR/skos-reference **Relationship:** Adjacent standard for concepts, labels, schemes, notes, and semantic mappings.

[**E7**] W3C OWL Working Group. *OWL 2 Web Ontology Language Document Overview*, Second Edition. W3C Recommendation, 11 December 2012. https://www.w3.org/TR/owl2-overview/ **Relationship:** Adjacent formal ontology standard used to compare declared semantics and inference commitments.

Ableman corpus

[**A1**] Adam Ableman. *Ableman Constitutional Governance*. Ableman Corpus current edition; work identity

AMCS-LOCAL-WORK-79353AF163A4B0F1;
source SHA-256
FB0D9B2D3D54168FFE70B24308D1B2766D6D663ED24502D475E975939BE97C8B.
Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

[**A2**] Adam Ableman. *Governance Engineering.* Ableman Corpus current edition; work identity PAPER.PUB.18749870;
source SHA-256
372169F315D192733856B1F4A3F1038BBC73F57CF3ED9ACABAE72B965A69C8D0.
Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

[**A3**] Adam Ableman. *Universal Governance Kernel (UGK).* Ableman Corpus current edition; work identity
AMCS-LOCAL-WORK-1F9BFB2BF8370226;
source SHA-256
AA5106EA71E5DF120E141435C280DFC532715CA5DE0C75B8862BB7784ECCFACD.
Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

[**A4**] Adam Ableman. *Legitimacy Without Self-Ratification.* Ableman Corpus current edition; work identity
AMCS-LOCAL-WORK-EF2382F9397335AC;
source SHA-256
0186A39C808F8FDDB5C8F42384DF1A26678928434BD50A0EAE8D4947390F68A2.
Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

[**A5**] Adam Ableman. *Meaning as Binding.* Ableman Corpus current edition; work identity
AMCS-LOCAL-WORK-5F976917F0B283EA;
source SHA-256
A470D1A0B9ED7C3CEAB6BB88BE4B642A2BA36427447F787764329FD574DA0C97.
Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

[**A6**] Adam Ableman. *Governed Meaning Base (GMB).* Ableman Corpus current edition; work identity
AMCS-LOCAL-WORK-D95CCC4FB7B58BFB;
source SHA-256
A3B62E50F8BEE125FDAE0D38C2839AFD1CCC138296268BF93217481E38AA48EA.
Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

[**A7**] Adam Ableman. *Semantic Manifold Topology.* Ableman Corpus current edition; work identity PAPER.PUB.20257244;
source SHA-256
B8F28CC652A73A3EE4CF6FD0E23C1ABC922A6660319B2FB4CC1CCAAA606EC64A.

Corpus relationship: priority cross-link selected by corpus profile and similarity review; no identity merger or publication effect.

Editorial source notes retained from predecessor

Ableman Adam Ableman *Meaning–Inertia: An Ontological Substrate Beneath Inertia, Gravitation, and Spacetime.*

Ableman Adam Ableman *Constitutional Meaning.*

Ableman Adam Ableman *Constitutional Intelligence.*

Ableman Adam Ableman *Constitutional Markets.*

Ableman Adam Ableman *The Optional Coordinator.*

Ableman Adam Ableman *Constitutional Incompleteness.*

Ableman Adam Ableman *Constitutional Evolution.*

Einstein, A. *Relativity: The Special and General Theory.*

Shannon, C. E. *A Mathematical Theory of Communication.*

Wiener, N. *Cybernetics.*

Ashby, W. Ross. *An Introduction to Cybernetics.*

von Bertalanffy, L. *General System Theory.*

Simon, H. A. *The Architecture of Complexity.*

Wolfram, S. *A New Kind of Science.*

Bach, J. Essays and lectures on cognitive architectures, emergence, and computational ontology.

Standing and Claim Boundary

This paper is a conceptual, formal, or architectural contribution unless it explicitly binds a statement to a cited external source or an exact carried evidence artifact. Unbound statements about implementation, validation, performance, safety, universality, or proof are research claims or design obligations, not established operational facts. Corpus-internal references establish conceptual lineage and comparison, not independent external confirmation.

References

The entries below are corpus-internal comparison and dependency sources. Their inclusion does not establish external validation of this paper's empirical, safety, novelty, or performance claims.

Adam Ableman *Meaning–Inertia: An Ontological Substrate Beneath Inertia, Gravitation, and Spacetime.* Zenodo, 2026. doi:10.5281/zenodo.18209065

Adam Ableman *A Theory of Agentic Observation.* Zenodo, 2026. doi:10.5281/zenodo.20437813

Adam Ableman *CARA: Constrained Artificial Reasoning Architecture.* Zenodo, 2025. doi:10.5281/zenodo.18099715

Adam Ableman *Constitutional Computation.* Zenodo, 2026. doi:10.5281/zenodo.20624488

Adam Ableman *Constraint-Bearing Composability.* Zenodo, 2026. doi:10.5281/zenodo.21632061

Adam Ableman *Fractal Governance Architecture.* Zenodo, 2026. doi:10.5281/zenodo.20754189

Adam Ableman *Governed Semantic Compilation: Lawful Continuation, Refusal Semantics, and Epistemic Promotion in Large Language Models.* Zenodo, 2026. doi:10.5281/zenodo.18453681

Adam Ableman *MCIR: A Canonical Intermediate Representation for Governed Transformation.* Zenodo, 2026. doi:10.5281/zenodo.21095303

Corpus source and companion formats: https://github.com/AblemanMosaic/ableman-corpus
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DOI: 10.5281/zenodo.23848762